



Office of Court Administration

Instructions and Letter **Requesting Court to Issue an Order of Nondisclosure** **Under Section 411.072**

THE FOLLOWING INSTRUCTIONS AND LETTER ARE ONLY FOR PERSONS REQUESTING AN ORDER OF NONDISCLOSURE UNDER [SECTION 411.072](#), GOV'T CODE. DO NOT ATTEMPT TO USE THE LETTER BELOW WITHOUT FIRST REVIEWING THE NONDISCLOSURE OVERVIEW TO DETERMINE IF YOU ARE ELIGIBLE FOR AN ORDER OF NONDISCLOSURE, AND IF SO, TO IDENTIFY THE CORRECT FORM TO USE. THE NONDISCLOSURE OVERVIEW IS AVAILABLE ON THE OFFICE OF COURT ADMINISTRATION'S WEBSITE AT THIS [LINK](#).

NOTE: You are ineligible for an order of nondisclosure under Section 411.072 if your discharge and dismissal occurred prior to September 1, 2017. If your discharge and dismissal occurred prior to September 1, 2017, you cannot use this letter.

TO BE ELIGIBLE TO USE THIS LETTER **EACH** OF THE FOLLOWING STATEMENTS MUST BE **TRUE**.

1. You were placed on deferred adjudication for a qualifying misdemeanor.
2. The court did not enter an affirmative finding that it is not in the best interest of justice for you to receive an automatic order of nondisclosure.
3. You received a discharge and dismissal on or after September 1, 2017.
4. You have been or were on deferred adjudication for a minimum of 180 days.
5. You are a first-time offender, excluding fine only traffic offenses.

Order of Nondisclosure under Section 411.072

If you are eligible for an order of nondisclosure under Section 411.072, you do not have to file a petition or pay filing fees when you submit the enclosed letter to the court. **The letter is not a petition.** *(NOTE: Some courts may set your case on the docket on the date that your period of deferred adjudication expires to determine your eligibility for an order of nondisclosure under Section 411.072.)*

The statute requires the court to determine whether you qualify for an order under Section 411.072 at the time the court discharges and dismisses the proceedings against you under Article 42A.111, Code of Criminal Procedure. However, you must present evidence necessary to establish that you are eligible to receive the order and pay a \$28 fee (**this is not a filing fee**) or submit a *Statement of Inability to Afford Payment of Court Costs* to the court before the court issues the order.

As a general rule, you must pay a \$28 fee before the court issues the order. However, you may be eligible to file a [Statement of Inability to Afford Payment of Court Costs](#) in lieu of paying the fee. The statement is described in Rule 145 of the [Texas Rules of Civil Procedure](#). The form for the Statement of Inability to Afford Payment of Court Costs is available on the Office of Court Administration's website at this [link](#).

You may present evidence that you are eligible to receive an order of nondisclosure under Section 411.072 by completing and submitting the letter provided below. **You must complete the letter before submitting it to the court.** The court will use the letter to determine your eligibility for the order.

A **proposed order** for the order of nondisclosure is provided in these materials as well. You should submit the proposed order with the letter. The court will complete the proposed order if the court determines that an order should issue.

Required Waiting Period

If the court finds that you satisfy the requirements for an order under Section 411.072, the court cannot issue the order of nondisclosure until you have been on deferred adjudication for at least 180 days. Basically, the court is required to issue the order of nondisclosure as follows:

- If the court discharges and dismisses the proceedings against you **on or after** the 180th day that you have been on deferred adjudication, the court must issue the order of nondisclosure at the same time the court discharges and dismisses the proceedings against you; or
- If the court discharges and dismisses the proceedings **prior** to the 180th day that you have been on deferred adjudication, the court must wait until you

have been on deferred adjudication for 180 days before issuing the order of nondisclosure. On or after the 180th day, the court must issue the order **as soon as practicable**.

Summary of Procedure

If you are eligible for an order under Section 411.072, Gov't Code, you should take the following steps:

1. Complete the letter below, and if 180 days have passed since you have been on deferred adjudication, submit the letter and proposed order (*Order of Nondisclosure under Section 411.072*) to the clerk of the court (hereinafter "clerk"); and
2. Pay \$28 or submit a *Statement of Inability to Afford Payment of Court Costs*. Ask the clerk about their procedures for paying the fee or submitting the statement.

If the court has not already issued an order of nondisclosure, the court will review your letter and determine if you qualify for the order. If the court determines that you qualify for the order, the court will issue the order if you have paid the fee or submitted a statement of inability to pay.

If the court grants the order of nondisclosure, the clerk will send a copy of the order to DPS no later than 15 business days after the order issues. After receiving the order, DPS has 10 business days to seal, not delete, the criminal history record information that is subject to the order and to forward a copy of the order to the state and federal agencies listed in [Government Code Section 411.075\(b\)](#). It is important for you to know that some agencies, including law enforcement agencies, will still have access to the information, although the information is sealed. You will find a list of such agencies at [Government Code Section 411.0765](#).

**LETTER REQUESTING AN ORDER OF NONDISCLOSURE UNDER SECTION 411.072,
GOVERNMENT CODE**

_____ (1)

The Honorable Maria Ellis (2)
County Court at Law No. 2 _____ (3)
c/o Court Clerk
100 Main Street _____ (4)
Austin, Texas 78701 _____ (5)

Re: Criminal Cause No. C-1-CR-19-00421 (6)
Jordan Avery _____ (7)

To the Honorable Court,

I, Jordan Avery (8), respectfully request the court to issue an order of nondisclosure under Government Code Section 411.072 in the above-referenced case.

I entered a plea of guilty (9) to the offense of Theft of property, Class B misdemeanor (10) and the court placed me on deferred adjudication. My period of deferred adjudication began on 09/01/2019 (11) and ended on 03/15/2020 (12). I have _____ (13) attached a copy of the Order of Deferred Adjudication. On 03/15/2020 (14) I received a discharge and dismissal from the court. I have _____ (15) attached a copy of the discharge and dismissal.

I believe that I am entitled to an order of nondisclosure under Section 411.072 for the following reasons: (16)

- ☒ 1. I was placed on deferred adjudication for a misdemeanor other than a misdemeanor under Penal Code Section 49.04 (Driving While Intoxicated) or 49.06 (Boating While Intoxicated) or Chapter 20 (Kidnapping, Unlawful Restraint, Or Smuggling of Persons), 21 (Sexual Offenses), 22 (Assaultive Offenses), 25 (Offenses Against The Family), 42 (Disorderly Conduct And Related Offenses), 43 (Public Indecency Offenses), 46 (Weapons Offenses), Or

71 (Organized Crime Offenses);

- ☒ 2. Aside from the offense reflected above, I have not been previously convicted of or placed on deferred adjudication for any offense, excluding traffic offenses punishable by fine only;
- ☒ 3. The court did not enter an affirmative finding that it is not in the best interest of justice for me to receive an automatic order of nondisclosure under Section 411.072;
- ☒ 4. I received a dismissal and discharge under Article 42A.111, Code Crim. Proc. (formerly, § 5(c), Article 42.12, Code Crim. Proc.) on or after September 1, 2017; and
- ☒ 5. I satisfy the requirements of Government Code Section 411.074 because:
- a. Including the offense for which the order of nondisclosure is requested, I have never been convicted of or placed on deferred adjudication for any of the following offenses:
 - (i) an offense requiring registration as a sex offender under Code of Criminal Procedure Chapter 62;
 - (ii) an offense under Penal Code Section 20.04 (Aggravated Kidnapping);
 - (iii) an offense under any of the following sections of the Penal Code:
 - Section 19.02 (Murder);
 - Section 19.03 (Capital Murder);
 - Section 20A.02 (Trafficking of Persons);
 - Section 20A.03 (Continuous Trafficking of Persons);
 - Section 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual);
 - Section 22.041 (Abandoning or Endangering a Child);
 - Section 25.07 (Violation of Court Orders or Conditions of Bond in a family violence, sexual assault or abuse, indecent assault, stalking, or trafficking case);
 - Section 25.072 (Repeated Violation of Certain Court Orders or Conditions of Bond in family violence, sexual assault or abuse, indecent assault, stalking, or trafficking case); or
 - Section 42.072 (Stalking); or
 - (iv) any offense involving family violence, as defined by Family Code Section 71.004;
 - b. This court did not make an affirmative finding that the offense for which I am requesting an order of nondisclosure involved family violence; and

- c. I was not convicted of or placed on deferred adjudication for any offense other than a traffic offense punishable by fine only during the 180 days following my placement on deferred adjudication.

Based on the above information, I respectfully request the court to issue an order of nondisclosure for the criminal offense(s) referenced above.

Sincerely,

_____	(17)
Signature	
Jordan Avery	
_____	(18)
Printed Name	
418 Cedar Lane, Austin, Texas 78701	
_____	(19)
Address	
Austin, Texas 78701	
_____	(20)
City, State, Zip	
512-555-0142	
_____	(21)
Telephone Number	

Instructions for Completing Letter

- (1) Please enter the current date.
- (2) Please enter the name of the judge that placed you on deferred adjudication.
- (3) Please enter the name of the court that placed you on deferred adjudication. Only the court that placed you on deferred adjudication can issue an order of nondisclosure in your case.
- (4) Please enter the address of the court that placed you on deferred adjudication.
- (5) Please enter the city, state, and zip code of the court that placed you on deferred adjudication.
- (6) Please enter the Criminal Cause Number of your case. This should be on the order that placed you on deferred adjudication.
- (7) Please enter your name as shown on the order of deferred adjudication.
- (8) Please enter your current legal name. This name may differ if your name has changed.
- (9) Please select either “guilty” or “nolo contendere” as shown on the order that placed you on deferred adjudication under Plea to Offense.
- (10) Please enter the offense shown on the order that placed you on deferred adjudication under Offense.
- (11) Please enter the date your deferred adjudication began as shown on the order.
- (12) Please enter the date your deferred adjudication ended as shown on the order.
- (13) Please select “have” if you will be attaching a copy of the order that placed you on deferred adjudication or “have not” if you are not attaching a copy of the order.
- (14) Please enter the date that you received a discharge and dismissal from the court.
- (15) Please select “have” if you will be attaching a copy of the discharge and dismissal or “have not” if you are not attaching a copy of the discharge and dismissal.
- (16) Please review the five statements numbered 1 through 5 and place a check mark or an “x” on the line before each statement that is true in your case. If you are unable to check or mark each box, you are ineligible for an order under Section 411.072.
- (17) Please sign above the line.
- (18) Please PRINT your name.
- (19) Please enter your mailing address.
- (20) Please enter your city, state, and zip code.
- (21) Please enter your telephone number.

Cause No. _____

In the Matter of

§ In the

§ _____

_____ § _____ County, Texas

Order of Nondisclosure **Under Section 411.072**

On _____, the Court reviewed evidence before it to determine whether Petitioner is eligible for an order of nondisclosure under Government Code Section 411.072.

On or about _____, Petitioner was placed on deferred adjudication community supervision for the misdemeanor offense of _____ in Criminal Cause No. _____. The Court entered a discharge and dismissal of the proceedings against Petitioner on _____.

After reviewing the evidence, the Court **FINDS** that Petitioner received a discharge and dismissal under Code of Criminal Procedure Article 42A.111 and has satisfied the basic requirements of Government Code Section 411.074. **THEREFORE**, Petitioner is eligible for an automatic order of nondisclosure under Section 411.072, Gov't Code.

Accordingly, **IT IS HEREBY ORDERED** that criminal justice agencies are prohibited from disclosing to the public criminal history record information pertaining to the arrest and prosecution of Petitioner for the above-referenced offense, as reflected in the above-referenced criminal cause number.

IT IS FURTHER ORDERED that the criminal history record information pertaining to the arrest and prosecution of Petitioner for the above-referenced offense(s), as reflected in the above-referenced criminal cause number, shall be sealed and disclosed only to individuals and agencies listed in Government Code Section 411.076(a).

IT IS FURTHER ORDERED that the court clerk shall send all relevant criminal history record information contained in this order or a copy of this order to the Crime Records Service of the Texas Department of Public Safety (hereinafter “DPS”) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than the 15th business day after the order issues, in accordance with Government Code Section 411.075(a).

IT IS FURTHER ORDERED that DPS shall seal the criminal history record information that is the subject of this order and forward the relevant information contained in this order or a copy of this order to all state and federal agencies listed in Government Code Section 411.075(b) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than 10 business days after receiving information contained in this order or a copy of this order from the court clerk, in accordance with Government Code Section 411.075(b).

IT IS FURTHER ORDERED that a person, agency, or entity shall seal any criminal history record information that is the subject of this order and maintained by the person, agency, or entity no later than 30 business days after the person, agency, or entity

receives relevant information contained in this order or a copy of this order from DPS, a court clerk, or the person who is the subject of the order, in accordance with Government Code Section 411.075(d).

IT IS FURTHER ORDERED that the clerk shall seal all court records containing information that is the subject of this order as soon as practicable after the clerk sends a copy of this order or all relevant criminal history record information contained in this order to DPS, in accordance with Government Code Section 411.076(b).

Signed on _____.

Judge Presiding

Court/County

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA
AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN
CONFIDENCIAL



Statement of Inability to Afford Payment of Court Costs or an Appeal Bond

Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación

Cause Number
Número de Caso

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

v.

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

Court Number
Número del Tribunal

_____, Texas
County
Condado

- ☐ District Court
Tribunal de Distrito
- ☐ County Court
Tribunal del Condado
- ☐ County Court at Law
Tribunal Estatutario
- ☐ Justice Court
Juzgado de Paz
- ☐ Probate Court
Juzgado Sucesorio

1. Your Information / Su Información

- My full legal name is / Mi nombre legal completo es
Jordan Avery

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / Mi fecha de nacimiento es
04/16/1993

Month Day Year / Mes Día Año

- My address is / Mi dirección es

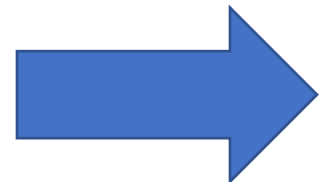
Home / Domicilio 418 Cedar Lane, Austin, Texas 78701

Mailing / Dirección Postal

- My phone number / Mi número telefónico 512-555-0142

- My email I check often / Mi correo electrónico que reviso con frecuencia
jordan.avery@example.test

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Pase a la siguiente página

2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

Name Nombre	Age Edad	Relationship to me Parentesco Conmigo

3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

Check only one box. Seleccione solo una casilla.

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☒ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?
¿Recibe usted o sus dependientes beneficios de asistencia pública?

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.

☐ Food stamps/SNAP
Cupones de comida/SNAP

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing
Asistencia de Vivienda / Programa de Vivienda bajo Sección 8

☐ Low-Income Home Energy Assistance
Asistencia con Energía Eléctrica

☐ Community Care via HHS
Ayuda Comunitaria bajo HHS

☐ LIS in Medicare ("Extra Help")
Subsidio Adicional de Medicare bajo el Programa LIS

☐ Needs-based VA Pension
Pensión para Veteranos de Guerra en función a necesidades

☐ Child Care Assistance under Child Care and Development Block Grant
Asistencia con Guardería bajo el Programa CCDBG

☐ County Assistance, County Health Care, or General Assistance (GA)
Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?

➤ My **take-home** pay is \$_____ in monthly wages.

Mi **pago neto** es \$_____ en sueldo mensual.

➤ I work as a _____ (your job title) for _____ (your employer).

Yo trabajo como _____ (título de su puesto) para
_____ (compañía o jefe).

➤ \$_____ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$_____ in unemployment / en beneficios de desempleo.

I have been unemployed since _____ (date).

He estado desempleado desde _____ (indique fecha).

➤ \$_____ in public benefits / en beneficios de Asistencia Pública.

➤ \$_____ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$_____ from retirement or pension / de jubilación o pensión.

➤ \$_____ from tips or bonus / de propinas o bonos.

➤ \$_____ from disability / de discapacidad.

➤ \$_____ from worker's comp / de compensación al trabajador.

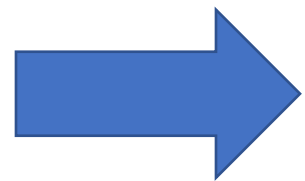
➤ \$_____ from social security / de seguro social.



- \$_____ from military housing / de vivienda militar.
- \$_____ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$_____ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$_____ from my spouse's income / de ingresos de mi cónyuge.
- \$_____ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

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Pase a la siguiente página

6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?

My property includes: Mis bienes incluyen:	Value / Valor The value is the amount the item would sell for less the amount you still owe on it, if anything. El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.
➤ Cash Dinero en efectivo	\$
➤ Bank accounts, other financial assets Cuentas bancarias, otros bienes financieros	
	\$
	\$
	\$
➤ Cars and boats (make and year) Automóviles, lanchas (modelo y año)	
	\$
	\$
	\$
➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.) Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)	
	\$
	\$
	\$
Total Value of Property Valor Total de Sus Bienes	\$



**7. What are your monthly expenses that are not deducted from your paycheck?
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

My monthly expenses are: Mis gastos mensuales son:	Amount Cantidad
➤ Rent/house payments; maintenance Alquiler/hipoteca; mantenimiento de casa	\$
➤ Food and household supplies Alimentos y artículos para el hogar	\$
➤ Utilities and telephone Luz, gas, agua y teléfono	\$
➤ Clothing and laundry Ropa y lavado de ropa	\$
➤ Medical and dental expenses Gastos médicos y dentales	\$
➤ Insurance (life, health, auto, etc.) Seguros (de vida, médico, de automóvil etc.)	\$
➤ School and childcare Escuelas y guarderías	\$
➤ Transportation, auto repair, gas Transportación, reparaciones de automóviles, gasolina	\$
➤ Child/Spousal support Manutención a Menores/Manutención Conyugal	\$
➤ Debt payments to (list): Pagos por deudas hechas a (indíquelos):	
	\$
	\$
➤ Wages withheld by court order Sueldo retenido por orden judicial	\$
➤ Other expenses (list): Otros gastos (indíquelos):	
	\$
	\$
Total Monthly Expenses Gastos Totales Mensuales	\$



8. Are there debts or other facts explaining your financial situation?
¿Hay deudas u otros factores que expliquen su situación económica?

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

	\$
	\$
	\$
	\$
	\$

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal

Check only one box. Seleccione tan solo una casilla.

- ☒ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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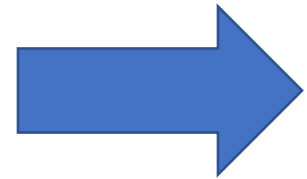
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10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

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Option 1 / Opción 1

Declaration: I declare under penalty of perjury that the foregoing is true and correct.

Declaración: Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Jordan Avery

➤ My date of birth is / Mi fecha de nacimiento es

____/____/____

➤ My address is / Mi domicilio es

418 Cedar Lane, Austin, Texas 78701

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature

Firma

➤

Date (month, day, year)

Fecha (mes, día, año)

➤

County, state

Condado, estado

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Pase a la siguiente página

Option 2 / Opción 2

Affidavit: I swear under penalty of perjury that the foregoing is true and correct.

Declaración Escrita Bajo Juramento: Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

You fill out this section.

Usted llena esta sección.

- Jordan Avery

Your printed name
Su nombre en letra de molde
- _____
Your signature
Su firma

The notary fills out this section.

El Notario llena esta sección.

➤ _____

Subscribed before me this day of
Juramentado y suscrito ante mí el día de hoy del mes de

_____, 20____

NOTARY
NOTARIO

